

With the adjustment to the hourly rate, the lodestar is set at \$4,480.

Costs are awarded in the amount of \$112.59. Total attorney's fees and costs are awarded in the amount of \$4,592.59. The attorney's fees and costs are to be paid within thirty (30) days of this court's order.

26CV-01422

Christopher Bettencourt vs San Luis Delta Mendota Water Authority

Demurrer to the Complaint

Defendant's demurrer to Plaintiff's complaint is OVERRULED IN PART and SUSTAINED IN PART.

A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

For this reason, the court will not decide questions of fact on demurrer. (See *Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

Defendant's demurrer based on the statute of limitations is OVERRULED. Plaintiff has alleged timely compliance with the Government Claims Act.

Defendant's demurrer to the first, third, fourth, fifth, and sixth causes of action are SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

Defendant's demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA. Wrongful termination in violation of public policy is not a proper cause of action against a public entity.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is GRANTED IN PART and DENIED IN PART.

The motion to strike the phrase "punitive damages" from Paragraph 75 (Complaint ¶ 75, 10:18) is GRANTED WITHOUT LEAVE TO AMEND. Punitive damages are not available against a public entity.

The motion to strike the phrase "punitive damages" from Paragraph 82 (Complaint ¶ 82, 11:13) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.

The motion to strike Plaintiff's prayer for relief at Number 6 (Complaint, No. 6, 14:9) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.
